

FEDERAL SYSTEM

FEDERAL DEFINITION — UNION BIAS — LEGISLATIVE DISTRIBUTION — STATE-LIST EXCEPTIONS — BASIC-STRUCTURE CASES — SHARED RULE AND ASYMMETRY — FISCAL FEDERALISM — CURRENT FRICTION — ANSWER SYNTHESIS

Read the thick cyan rail from Stage 00 to the final core synthesis. The grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW Approval: FALSE Pending user review active generation g3 explicit approval of this exact generation is required all prior artifacts unchanged

CORE BEFORE EXTRA prior artefacts unchanged exact same master drives poster and tiles

00

STAGE 00 FEDERAL TEST, FORMATION AND TERRITORY

ARTICLE 1 UNION OF STATES HOLDING TOGETHER ARTICLES 2-4 NO SECESSION

FEDERAL TEST

- Constitution protects Union and State authority in assigned spheres.
- Both levels act directly on citizens; neither is an ordinary delegate.

FORMATION

- India is a holding-together federation with a strong Union.
- Union of States is not a compact among sovereign States.

TERRITORY

- Article 3 requires presidential recommendation and State views, not State consent.
- Reorganisation law is outside Article 368 under Article 4.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Federalism joins constitutionally protected regional autonomy to shared rule within one sovereign order.

01

STAGE 01 FEDERAL FEATURES AND UNION BIAS

DUAL POLITY SEVENTH SCHEDULE RAJYA SABHA RESIDUARY POWER INTEGRATED SERVICES

FEDERAL

- Written supreme Constitution, divided power, selective rigidity and courts.
- State competence is autonomous but not sovereign.

UNION BIAS

- Residuary power, State-field exceptions, emergencies and fiscal capacity.
- Single citizenship, integrated services and centrally appointed Governor.

VERDICT

- Centralising powers are constitutional and reviewable.
- S.R. Bommai (1994) prevents Union bias from extinguishing federalism.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: India is constitutionally federal and Union-weighted; "quasi-federal" is analysis, not constitutional text.

02

STAGE 02 LEGISLATIVE DISTRIBUTION AND CONFLICT

ARTICLES 245-246 UNION 100 STATE 61 CONCURRENT 52 ARTICLE 248 ARTICLE 254

ALLOCATION

- Article 246 orders the three Lists: Article 246A separately structures GST.
- Article 248 and Union Entry 97 vest residuary power in Parliament.

DOCTRINES

- Pith and substance tests true nature; harmonious construction reconciles.
- Territorial nexus and colourable legislation police limits.

REPUGNANCY

- Article 254 principally concerns Concurrent List conflict.
- Presidential assent can save a State law locally; Parliament may later override.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Legislative federalism first characterises and reconciles overlap, then applies supremacy only to irreconcilable conflict.

03

STAGE 03 PARLIAMENT ENTERING THE STATE FIELD

ARTICLE 249 ARTICLE 250 ARTICLE 252 ARTICLE 253 ARTICLES 356-357

TRIGGERS

- 249: Rajya Sabha national-interest resolution; 250: national emergency.
- 252: two or more States request; 253: treaty implementation.

DURATION

- 249/250 laws survive six months after authority ends.
- Article 252 laws apply to requesting/adopting States and Parliament controls repeal.

LIMIT

- Each route has a separate trigger and scope.
- Exceptional access does not permanently erase List II.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliament enters List II through enumerated constitutional doors, not a general supremacy clause.

04

STAGE 04 ADMINISTRATIVE RELATIONS: DIRECTIONS, DELEGATION, COUNCILS

ARTICLES 256-257 ARTICLE 258 ARTICLE 258A ARTICLE 261 ARTICLES 262-263

COMPLIANCE

- Articles 256-257 secure law compliance and prevent impedance of Union power.
- Directions are text-bounded, not a general administrative takeover.

DELEGATION

- 258 entrusts Union functions to States with consent.
- 258A permits State-to-Union entrustment with Union consent.

LEGAL SPACE

- 261 gives full faith and credit.
- 262 needs parliamentary law for water adjudication/exclusion; 263 enables ISC.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Administrative federalism combines bounded directions with reciprocal delegation and consultative dispute management.

05

STAGE 05 FINANCIAL DISTRIBUTION AND FISCAL AUTONOMY

ARTICLES 268-270 ARTICLES 275/282 ARTICLES 280-281 ARTICLE 293 41 PERCENT GST

REVENUE

- 268/269/269A assign levy, collection and apportionment.
- 270 structures the divisible pool; 275 and 282 are distinct grant routes.

INSTITUTIONS

- 280-281 create Finance Commission reporting.
- 16th FC report: 17 Nov 2025; 41% vertical share for 2026-31.

FRICTION

- 293 may condition State borrowing consent.
- Cesses, schemes and unequal capacity can narrow effective autonomy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Fiscal federalism converts formal List II authority into usable capacity through assignment, devolution, grants and bargaining.

06

STAGE 06 BASIC STRUCTURE, ARTICLE 355 AND PRESIDENT’S RULE

STATE OF WEST BENGAL (1962) KESAVANANDA BHARATI (1973) S.R. BOMMAI (1994) ARTICLE 355 ARTICLES 356-357

CASE CHAIN

- State of West Bengal v. Union of India (1962) rejects sovereign-State compact theory.
- Kesavananda Bharati (1973) limits amendment; S.R. Bommai (1994) names federalism Basic Structure.

DUTY / REMEDY

- Article 355 creates a Union duty, not automatic Article 356 authority.
- 356 requires constitutional breakdown; 357 handles legislative power.

CONTROL

- Proclamations are reviewable; restoration is possible.
- Disputed majority ordinarily belongs on the House floor.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 355 states responsibility; Article 356 is an exceptional, reviewable remedy rather than its automatic consequence.

07

STAGE 07 WORKING MODES AND SHARED-RULE INSTITUTIONS

COOPERATIVE COMPETITIVE BARGAINING CONFRONTATIONAL GST COUNCIL INTER-STATE COUNCIL

MODES

- Cooperation coordinates; competition innovates; bargaining negotiates.
- Confrontation can remain constitutional through courts and politics.

INSTITUTIONS

- Rajya Sabha, ISC, Zonal Councils, GST Council and Finance Commission.
- NITI, All-India Services and courts connect policy and implementation.

LIMIT

- Non-binding consultation is not irrelevant.
- Mohit Minerals (2022) preserves legislative autonomy within GST dialogue.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Healthy federalism converts inevitable conflict into reasons, negotiation, adjudication and electoral accountability.

08

STAGE 08 ASYMMETRIC FEDERALISM AS ACCOMMODATION

FIFTH SCHEDULE SIXTH SCHEDULE ARTICLE 371 FAMILY ARTICLE 239AA EQUAL CITIZENSHIP

DESIGN

- Different units may receive different constitutional arrangements.
- Asymmetry accommodates history, identity, land and administration.

FORMS

- Fifth Schedule uses Governor/TAC protective administration.
- Sixth Schedule uses autonomous district/regional councils.

LIMIT

- Post-2019 J&K must be stated through current law.
- Asymmetry needs constitutional purpose; it is not arbitrary inequality.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Asymmetry can strengthen integration by protecting difference inside common citizenship.

09

STAGE 09 REPRESENTATION AND CURRENT FEDERAL FRICTION

RAJYA SABHA DELIMITATION 131ST BILL CENSUS 2027 GOVERNOR ASSENT CBI CONSENT

REPRESENTATION

- Rajya Sabha seats are unequal; Lok Sabha allocation shapes federal weight.
- The 131st Bill was negated 17 Apr 2026; its 850 ceiling is not law.

STATUS LIMITS

- Census conduct/reference dates are not publication or delimitation dates.
- No State-wise seat or women-reservation election date may be forecast.

FRICTIONS

- Governor: no fixed timeline/deemed assent; unexplained inaction remains reviewable.
- The 2024 West Bengal ruling decided Article 131 maintainability, not all CBI merits.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Current federal claims must separate enacted law, defeated proposals, notified processes and speculative outcomes.

10

STAGE 10 TEN VERIFIED PYQ ROUTES AND PRELIMS TRAPS

2020-2025 GS-II 2021/2023 PRELIMS ARTICLE 254 ARTICLE 262 GST RECOMMENDATORY NO STATE SOVEREIGNTY

PYQ MAP

- 2020 modes/centralisation; 2021 CBI; 2022 parties.
- 2023 Article 356/GST; 2024 trust; 2025 fiscal federalism.

PRELIMS

- Independent judiciary indicates federal character.
- Prisons are List II; colonial administration is not the constitutional reason.

TRAPS

- Article 254 is Concurrent-specific; 262 exclusion requires law.
- Article 355 is not automatic 356; GST advice is not binding.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: A high-scoring federal answer pairs every broad label with an Article, institution, case and limitation.

11

STAGE 11 MARKS-SCALED ANSWER SPINE AND QUALIFIED VERDICT

DEFINE ALLOCATE OPERATE EVIDENCE QUALIFY REFORM

10 MARKS

- Define the federal test; use one Article cluster and one case.
- Answer the directive in about 150 words.

15 MARKS

- Add legislative, administrative and fiscal mechanisms.
- Use named evidence, counterpoint and specific reform.

20 MARKS

- Integrate asymmetry, representation and current status.
- End with a graded Union-capacity/State-autonomy verdict.

MECHANISM / VERDICT — Move from definition to distribution, operation, evidence, limitation, reform and a graded verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: India’s federal legitimacy depends on converting superior Union capacity into consultation, equalisation and constitutional restraint.

E

EXTRA OPTIONAL ENRICHMENT: SCHOLARS AND DEEPER LABELS

OPTIONAL ONLY WHEARE AUSTIN MORRIS-JONES APPLEBY DIALOGIC FEDERALISM

LABELS

- Wheare: quasi-federal; Austin: cooperative; Morris-Jones: bargaining.
- Jennings, Appleby and sui generis labels widen evaluation.

DISCIPLINE

- No label replaces Articles, institutions or cases.
- Use scholarship only after the complete Core route.

OPTIONAL STATUS — This enrichment is unnecessary for a competent core answer and never repairs missing Core teaching.